

Colliers International

NORTH TEXAS COMMERCIAL ASSOCIATION OF REALTORS®

AMENDMENT TO COMMERCIAL LEASE AGREEMENT

This Amendment to Commercial Lease Agreement (the "Amendment") is entered into by Landlord and Tenant to amend the Commercial Lease Agreement (the "Lease") having an Effective Date of June 1, 2023 covering the Premises with an address of 1900-1908 Exchange Drive, Arlington, TX Texas. For valuable consideration, Landlord and Tenant agree as follows:

- ☐ 1. The Term is extended by 10 years and _____ months beginning on June 1, 2023 .
- ☐ 2. The Base Rent is changed to \$ 7.00 (Net) per month beginning June 1, 2023 .
- ☐ 3. The Commencement Date of the Lease is changed to or confirmed as June 1, 2023 .
- ☐ 4. The Expiration Date of the Lease Term is changed to or confirmed as May 31, 2033 .
- ☐ 5. Section 2 is changed to read as follows:

Free rent for one month (June 2023)

Base rent starts at \$7.00/SF and has 4% annual escalations.

This is a net lease and the estimated 2023 operating expenses are \$2.63/SF.

Landlord shall, at Landlord's expense provide the improvements below prior to June 1, 2023:

• "As-Is"

• Landlord, at its cost, will make sprinkler replacements/upgrades if required by the City of Arlington.

• Landlord will provide up to \$2,500 per year for sprinkler inspection

• Tenant may offset rent up to \$25,486 (bid amount) for a ramp.

• Tenant has the option for a five-year renewal at market rate.

Landlord recognizes the current condition of the Building as of the commencement of the renewal. Upon vacating, Tenant shall not be required to remove any of the improvements, alterations or additions in the Building. Attached are improvements previously made by the Tenant.

Tenant Broker under separate agreement for 4.5% of the net lease revenue. Landlord Broker, Colliers, will be paid 2.25% of the net lease revenue.

Commission to be paid 30 days after invoice.

Except as expressly changed by this Amendment, the provisions set forth in the Lease (as may have been previously amended) will remain in effect. Tenant accepts the Premises in "AS IS" condition and with all faults. Tenant waives any implied warranties as to the condition of the Premises, or as to the suitability of the Premises for any particular use. Capitalized terms that are not defined in this Amendment have the meanings given to them in the Lease. This Amendment may be executed in a number of identical counterparts, which will be construed together as one document. This Amendment is effective as of February 7, 2023 .

LANDLORD:

Futerfas Family Partners

By [Signature]: [Signature]

Print Name: Gleyn Futerfas

ALL GUARANTIES of the Lease will remain in effect. This Amendment is signed by Guarantor(s) to confirm the continuing validity of the Guaranty(ies) of the Lease, as amended.

TENANT:

TDIndustries, Inc.

By [Signature]: [Signature]

Print Name: Ed White, President

By [Signature]: _____

Print Name: _____

GUARANTOR(S):

[Signature]: _____

Print Name: _____

[Signature]: _____

Print Name: _____

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